

Court No. - 40

Case :- WRIT - C No. - 26636 of 2023

Petitioner :- Mithlesh Valmiki

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Vinod Shankar Tripathi, Deepak Singh Patel

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

As prayed, put up this matter again as fresh on 13.09.2023.

Order Date :- 6.9.2023

Shiraz

(Prashant Kumar, J.) (Mahesh Chandra Tripathi, J.)

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1. Heard Sri Vinod Shankar Tripathi, learned counsel for the petitioner, Sri Ambrish Shukla, learned Additional Chief Standing Counsel for State-respondent no.1 and Sri Pranjal Mehrotra, learned counsel for respondent nos.2 to 4.

2. The petitioner has preferred the present writ petition seeking following reliefs:-

(i) Issue a writ, order or direction in the nature of mandamus commanding the respondents to consider and grant electricity connection to the petitioner.

(ii) Issue a writ, order or direction in the nature of mandamus commanding and directing the respondent authority to issue a no dues certificate in favour of petitioner in pursuance of payment receipt dated 20.7.2022 given by husband of the petitioner in favour of Respondent Electricity Department.

3. Sri Pranjal Mehrotra, learned counsel for respondent Corporation placed the detailed instruction dated 8.9.2023 sent by Executive Engineer, Electricity Urban Distribution Division-III, Moradabad, which is taken on record. The said instruction contains the order dated 19.7.2022 passed by the Executive Engineer, wherein electricity assessment of the premises has already been taken place and the amount had been quantified. In this backdrop, Shri Pranjal Mehrotra, learned counsel for the respondent-Corporation raised an objection regarding the maintainability of the writ petition on the ground that in response to the assessment, admittedly the petitioner had deposited Rs.2,91,552/- on 20.7.2022 and at present there is balance amount of Rs.6,34,774/-. He submits that for all practical purposes, the petitioner has already accepted the assessment and the same was acted upon by the petitioner himself. Therefore, at this stage, he cannot raise an objection regarding assessment, which took place on 19.7.2022. He further submits that even against the said assessment, the petitioner had efficacious remedy to challenge the same under Section 127 of the Electricity Act. In case the petitioner is inclined to deposit the balance amount, he may move an appropriate application in terms of Clause 6.14 of the U.P. Electricity Supply Code, 2005 (in short "the Code") and definitely the said application would be considered by the competent authority.

4. Confronted with this situation, learned counsel for the petitioner fairly states that

leave may be accorded to the petitioner to move appropriate application before the competent authority in terms of Clause 6.14 of the Code.

5. Considering the facts and circumstances, we are not inclined to keep the matter pending consideration. With the consent of parties, it is provided that in case the petitioner is inclined to clear the outstanding amount, definitely he may take recourse as per the Code.

6. The writ petition stands **disposed of** accordingly.

Order Date :- 20.9.2023

Manish Himwan